

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DELON WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JAMES
TILLMAN, Shield No. 5516, DETECTIVE HERBERT
MARTIN, Shield No. 2675, and POLICE OFFICERS
JOHN DOES #s 1- 10 (names and numbers of whom are
unknown at present),

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 17, 2020

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JAMES TILLMAN, Shield No. 5516
DETECTIVE HERBERT MARTIN, Shield No. 2675

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DELOX WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JAMES
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Defendants.

INDEX NO.:**VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiff DELON WILLIAMS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 16, 2017, at 2:00 pm, plaintiff was lawfully walking in the vicinity of 655 Watkins Street, Brooklyn, New York, when defendants unlawfully stopped, questioned, frisked, and falsely arrested plaintiff without reasonable suspicion, probable cause, or legal justification. The officers unlawfully handcuffed plaintiff and transported him to the 73rd Precinct whereat plaintiff was unlawfully searched, unlawfully interrogated outside of the presence of an attorney, unlawfully photographed and fingerprinted, and unlawfully detained for many hours. Plaintiff was transported to Brooklyn Central Booking where the unlawful detention continued until August 17, 2017 when plaintiff was arraigned in Brooklyn Criminal Court and charged with several crimes he did not commit and that there was no evidence to establish probable cause to accuse him of committing, including Assault. Defendants initiated and continued a criminal prosecution against plaintiff without probable cause and denied plaintiff the right to sue process and the right to a fair trial when they provided false, misleading and incomplete evidence to the Brooklyn District Attorney's Office regarding the defendants factual basis for arresting and prosecuting plaintiff. Additionally, defendants withheld exculpatory video evidence for the Brooklyn District Attorney's Office of underlying incident that the defendants accused plaintiff of being involved. The defendants maliciously prosecuted plaintiff and denied him the right to due process and the right to a fair trial. Plaintiff was unable to post bail at arraignment and was

remanded into New York City Department of Correction custody on August 17, 2017 and was unlawfully detained on Riker's Island in inhumane, unsafe and unhealthy conditions until March 24, 2018, for approximately 7 months and 8 days until he was able to post bail and was released from custody. Plaintiff was required to appear in Court on approximately 20 occasions before all charges brought against plaintiff terminated in plaintiff's favor and were dismissed and sealed on June 14, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, maliciously prosecuted and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DELON WILLIAMS is a resident of the state of New York.
3. DETECTIVE JAMES TILLMAN, Shield No. 5516, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. DETECTIVE JAMES TILLMAN, Shield No. 5516, was at all times relevant herein, assigned to the 73rd Precinct Detective Squad.
5. DETECTIVE JAMES TILLMAN, Shield No. 5516, is being sued in his individual and official capacity.
6. DETECTIVE HERBERT MARTIN, Shield No. 2675, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. DETECTIVE HERBERT MARTIN, Shield No. 2675, is and was at all times relevant herein, assigned to the 73rd Precinct Detective Squad.
8. DETECTIVE HERBERT MARTIN, Shield No. 2675, is being sued in his individual and official capacity.
9. Defendants Police Officers John Does #s 1-10 are and were at all times relevant times herein officers, employees, and agents of the New York City Police Department.
10. Defendants Police Officers John Does #s 1-10 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of

the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.\

13. In furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK in compliance with the General Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on December 13, 2019.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On August 16, 2017, at 2:00 pm, plaintiff was lawfully walking in the vicinity of 655 Watkins Street, Brooklyn, New York, when defendants unlawfully stopped, questioned, frisked, and falsely arrested plaintiff without reasonable suspicion, probable cause, or legal justification.

18. At no time relevant herein did plaintiff violate the law or commit a crime, nor did defendants have an objective factual basis to establish reasonable suspicion or probable cause that plaintiff had committed, was committed, or was about to commit a crime or violate the law.

19. Defendants falsely accused plaintiff of committing an Assault on July 25, 2017.

20. Defendants unlawfully handcuffed plaintiff and transported him to the 73rd Precinct whereat plaintiff was unlawfully searched, unlawfully interrogated outside of the presence of an attorney, unlawfully photographed and fingerprinted, and unlawfully detained for many hours.

21. Plaintiff was transported to Brooklyn Central Booking where the unlawful detention continued until August 17, 2017 when plaintiff was arraigned in Brooklyn Criminal Court and charged with several crimes he did not commit and that there was no evidence to establish probable cause to accuse him of committing, including Assault.

22. Defendants initiated and continued a criminal prosecution against plaintiff without probable cause and denied plaintiff the right to due process and the right to a fair trial when they provided false, misleading and incomplete evidence to the Brooklyn District Attorney's Office regarding the defendants factual basis for arresting and prosecuting plaintiff.

23. The defendants maliciously prosecuted plaintiff and denied him the right to due process and the right to a fair trial.

24. Plaintiff was arraigned and charged with crimes he did not commit at arraignment, based upon the false, misleading, and incomplete information provided to the Brooklyn DA's Office by the police defendants.

25. Additionally, defendants withheld exculpatory video evidence for the Brooklyn District Attorney's Office of underlying incident that the defendants accused plaintiff of being involved.

26. Specifically, defendants withheld video footage that exonerated plaintiff of the crimes he was accused of committing.

27. Due to the severity of the charges filed against plaintiff in Criminal Court, the Court set bail at arraignment and plaintiff was unable to post bail.

28. Plaintiff was unable to post bail at arraignment and was remanded into New York City Department of Correction custody on August 17, 2017 and was unlawfully detained on Riker's Island in inhumane, unsafe and unhealthy conditions until March 24, 2018, for approximately 7 months and 8 days until he was able to post bail and was released from custody.

29. During the course of the malicious criminal prosecution against plaintiff, plaintiff was indicted by a grand jury based upon the fabricated testimony by defendants, false information documented in reports and the paperwork of defendants that was used as evidence for the grand jury, and/ or exculpatory evidence that was withheld from the Grand Jury by defendants.

30. The presumption of probable cause created by the Grand Jury indictment is rebuttable in this case because the indictment was based upon false statements told to the grand jury by defendants, false information documented in reports and paperwork by defendants, and/or exculpatory evidence that was withheld from the Grand Jury by defendants.

31. The defendants willfully and maliciously fabricated and/or withheld the evidence and allegations they made against plaintiff and perjured themselves in the grand jury, causing the malicious prosecution of plaintiff and causing the denial of plaintiff's right to due process/ right to a fair trial.

32. The exculpatory video surveillance that was withheld by defendants showed the individual that committed the crime plaintiff was accused of committing in the act of committing the crime. Additionally, the defendants withheld video footage of plaintiff at a

different location at the time the alleged crime was committed, wearing distinctively different clothing from the perpetrator of the crime.

33. Plaintiff was required to appear in Court on approximately 20 occasions before all charges brought against plaintiff terminated in plaintiff's favor and were dismissed and sealed on June 14, 2019.

34. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to establish probable cause to accuse plaintiff of committing a crime or violating the law in any way.

35. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

36. Plaintiff suffered severe emotional distress stress caused by defendants' unlawful stop, question, frisk, searches, false arrest/ false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial.

37. Plaintiff suffered severe economic damages as a result of being falsely arrested, maliciously prosecuted, and denied the right to due process/ right to a fair trial because he was fired from his job after he was arrested and was unemployed throughout the pendency of the criminal prosecution and thereafter.

38. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe she committed a crime or violated the law in any manner.

39. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION
Violation of Plaintiff's Fourth Amendment and Fourteenth
Amendment Rights

40. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right

to due process/ right to a fair trial, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

49. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Malicious Prosecution**

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

65. Defendants commenced and continued a criminal proceeding against plaintiff related to the underlying arrest of plaintiff without probable cause or legal justification.

66. There was actual malice and an absence of probable cause by defendants for the criminal proceedings against plaintiff and for each of the charges for which he was prosecuted.

67. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

68. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

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SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fifth and Fourteenth Amendment Rights****Denial of Right to Fair Trial/Due Process**

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein

73. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

74. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

75. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

77. As a result of the foregoing, plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. By falsely arresting plaintiff and then withholding exculpatory evidence from the Kings County District Attorney's Office that exonerated plaintiff of the crimes he was accused of committing, defendants each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff.

82. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The above-described conduct by falsely arresting plaintiff and then withholding exculpatory evidence from the Kings County District Attorney's Office that exonerated plaintiff of the crimes he was accused of committing, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

89. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

90. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

91. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

96. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

98. Defendants failed to intervene to prevent the unlawful conduct described herein.

99. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

TENTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

104. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Delon Williams demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 17, 2020

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

DATED: New York, New York
August 17, 2020

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